

## 24STCV12548 24STCV12548

County: los-angeles

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M&R PICO INVESTORS,

Plaintiff,

v.

PABLO SERRATO BARRAGAN,

et al.,

Defendants.

Case No.: 24STCV12548

Hearing Date: August 5, 2026

[TENTATIVE]

order RE:

defendants pablo serrato barragan's and  
sunwest roofing, inc.'s demurrer and motion to strike

### BACKGROUND

On May 17, 2024, Plaintiff M&R

Pico Investors filed this action against Defendants Pablo Serrato Barragan and

Sunwest Roofing, Inc. Plaintiff filed a First Amended Complaint on April 27,

2026, adding Defendants Old Republic Surety Company, Inc. and American

Contractors Indemnity Company. The FAC asserts (1) breach of express warranty,

(2) negligence, (3) fraud, and (4) enforcement of claim on license bond.

On June 26 and July 1, 2026,  
Defendants Barragan and Sunwest Roofing filed the instant demurrer and motion  
to strike against the FAC.

On July 23, 2026, Plaintiff filed a  
Second Amended Complaint.

## LEGAL STANDARD

A demurrer for sufficiency tests whether  
the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When  
considering demurrers, courts read the allegations liberally and in  
context. (Taylor v. City of Los  
Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.)  
In a demurrer proceeding, the defects must be apparent on the face of the  
pleading or by proper judicial notice. (Code Civ. Proc., § 430.30(a).) A  
demurrer tests the pleadings alone and not the evidence or other extrinsic  
matters. (SKF Farms v. Superior Court  
(1984) 153 Cal.App.3d 902, 905.) “California law emphasizes ultimate fact  
pleading (with some exceptions, notably for fraud and related torts) ‘in  
ordinary and concise language,’ and the test for adequacy is not absolute but ‘whether  
the pleading as a whole apprises the adversary of the factual basis of the  
claim.’” (Lim v. The.TV Corp. Internat. (2002) 99 Cal.App.4th 684, 690.)

Any party, within the time allowed to  
respond to a pleading, may serve and file a notice of motion to strike the  
whole or any part of that pleading. (Code Civ. Proc., § 435, subd. (b).) The  
court may, upon a motion, or at any time in its discretion, and upon terms it  
deems proper, strike (1) any irrelevant, false, or improper matter inserted in  
any pleading and (2) all or any part of any pleading not drawn or filed in  
conformity with the laws of this state, a court rule, or an order of the court.  
(Id., § 436.) The grounds for moving to strike must appear on the face  
of the pleading or by way of judicial notice. (Id., § 437.)

## MEET AND CONFER

Before filing a demurrer or a motion to  
strike, the demurring or moving party is required to meet and confer with the

party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., §§ 430.41, 435.5.) The Court finds that Defendants have satisfied the meet and confer requirement. (See Dahl Decl.)

## DISCUSSION

### I.

#### Demurrer

The dispute stems from Defendants' allegedly poor workmanship on Plaintiff's property, which suffered water damage during a rainstorm. Defendants demur to the first cause of action for breach of express warranty on the grounds that Plaintiff lacks standing because it was not a party to the contract. Specifically, Plaintiff did not exist at the time the contract was executed in 2019. Instead, Defendants contracted with the property's prior owner, Richard LeWinter, now deceased. (FAC ¶ 11.) Plaintiff did not file its Articles of Organization until 2020. (Def.'s RJN, Ex. A.) This shows as a matter of law that Plaintiff is not a party to the contract. Therefore, the first cause of action fails as a matter of law.

Defendants further demur to the third cause of action for fraud. The FAC alleges that Defendants fraudulently induced LeWinter to sign the contract. (FAC ¶ 33.) Plaintiff could not have been fraudulently induced into a contract if Plaintiff did not exist at the time and was not a party to the contract. Therefore, the third cause of action fails as a matter of law.

### II.

#### Motion to Strike

##### a. Punitive Damages

"In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the

defendant.” (Civ. Code, § 3294(a).) “[C]ases have uniformly recognized that proof of negligence, even gross negligence, or recklessness is insufficient to warrant an award of punitive damages.” (Dawes v. Superior Court (1980) 111 Cal.App.3d 82, 87.)

Here, the only potential claim supporting an award of punitive damages is the fraud claim, which fails for the reasons stated above. Therefore, the complaint contains no basis for punitive damages.

#### b. Attorney's Fees

“Except as attorney’s fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties . . . .” (Code Civ. Proc., § 1021.) Thus, “[a]ttorney fees are not recoverable unless a fee award is expressly authorized by either statute or the parties’ contract.” (Ilshin Investment Co., Ltd. v. Buena Vista Home Entertainment, Inc. (2011) 195 Cal.App.4th 612, 627.)

The FAC fails to articulate a statutory or contractual basis for attorney’s fees. Therefore, the prayer for attorney’s fees must be stricken.

#### CONCLUSION

Defendants Barragan’s and Sunwest Roofing’s demurrer to the FAC is SUSTAINED with leave to amend. The motion to strike is GRANTED with leave to amend. The Court treats the Second Amended Complaint filed on July 23, 2026 as the operative complaint. Defendants shall file a responsive pleading within 30 days of today.